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Case Number: 24SMCV04309 Hearing Date: July 10, 2026 Dept: P

Tentative

Ruling

Henry

Sanchez v. City of Los Angeles, et al., Case No. 24SMCV04309

Los

Angeles Unified School District's Motion for Summary Judgment

Hearing

Date: July 10, 2026

Background

Plaintiff

Henry Sanchez, a minor, by and through his guardian ad litem, Aura Morales, sues Defendant Los Angeles Unified School District ("LAUSD") for negligent failure to supervise, alleging that LAUSD failed to prevent another student from "unexpectedly and violently" pushing Sanchez during recess on November 13, 2023, causing injury. (Complaint, ¶ 14.)

On

September 6, 2024, Sanchez filed the complaint against LAUSD, the County of Los Angeles, and the Los Angeles County Office of Education.

On

December 26, 2024, Sanchez dismissed the County of Los Angeles and the Los Angeles County Office of Education.

On

February 27, 2026, LAUSD filed this Motion for Summary Judgment. On June 18, 2026, Sanchez filed opposition. On June 29, and June 30, 2026, LAUSD replied.

Arguments

LAUSD

moves for summary judgment arguing that Plaintiffs cannot establish that LAUSD's conduct caused Sanchez's injury because there is no evidence that Sanchez was pushed. (Motion for Summary Judgment, p. 5.) LAUSD contends that all admissible evidence, including Sanchez's deposition, show that Sanchez fell after he heard his friend shout and was not pushed. (Id. at pp. 8-9.) LAUSD argues that whether LAUSD's inadequate supervision caused the injury absent a push is irrelevant because that issue is not raised by the pleadings. (Id. at p. 10.)

Sanchez

opposes, arguing that the complaint alleges generally that LAUSD breached its duty of care, regardless of whether Sanchez was pushed, and that LAUSD should have prevented Sanchez's fall and resulting injury. (Opposition, p. 7.) Sanchez argues that LAUSD breached its duty of care because Sanchez's teacher, Ms. Lopez, was helping another student tie their shoe when Sanchez fell and was not adequately supervising him. (Id. at p. 9.)

In reply,

LAUSD argues that Sanchez concedes that he lacks evidence to support his pleadings, and thus cannot prove the facts alleged in his complaint. (Reply, p. 3.) LAUSD argues that Plaintiff cannot prove a nexus between LAUSD's alleged omission and his injury because the harm could have occurred in the presence or absence of a supervisor and was not preventable. (Id. at pp. 3-4.) LAUSD argues that Sanchez raises new, unpleaded issues regarding Ms. Lopez's actions that are nowhere in the complaint, and cannot be raised for the first time in opposition to this motion. (Id. at p. 5-6.)

Undisputed

Facts

It is

undisputed that Sanchez's complaint claims that he was pushed by an

unidentified student during recess, fell, and sustained injuries. (Plaintiff's Separate Statement, no. 1.) It is undisputed that Sanchez testified that he was surprised when his friend, Anthony, screamed, and let go of the ladder or playground apparatus he was holding onto and fell. (Id. at no. 4.) It is undisputed that the fall caused his injury. (Id. at no. 5.) It is undisputed that Sanchez's mother, Mrs. Morales, testified that Sanchez told treatment providers that he fell because someone screamed. (Id. at no. 11.) It is undisputed that Mrs. Morales testified that Sanchez had a nightmare in which another child pushed him, and that he never told her that he was pushed before having this nightmare. (Id. at no. 15-16.)

Evidentiary
Objections

Sanchez
makes eleven objections to LAUSD's compendium of evidence. Objections 1-9, 11 are overruled. Objection 10 is sustained (hearsay).

LAUSD
makes six objections to Plaintiff's Exhibit 2, excerpts of Abigail Lopez's Deposition. Objections 2-4 are overruled. The Court sustains objections 1 (lacks foundation), 5 (lacks foundation), 6 (lacks foundation).

Motion
for Summary Judgment

Summary
judgment or adjudication is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law."
(Code Civ. Proc. §437c(c).) The
moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

On a
motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical

Examiners (1974) 11 Cal.3d 1, 21.) Once the moving party has discharged its burden as to a particular cause of action, however, the opposing party may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action.¿ (Id. at §437c(p)(2).)¿

Analysis

Though

Sanchez's complaint contains conclusory allegations that LAUSD breached its duty of care by failing to supervise Sanchez, the only fact alleged to have caused Sanchez's injury is LAUSD's failure to prevent another child from pushing him:

"Plaintiff

HENRY SANCHEZ, a minor, and student at Stoner Avenue Elementary, was on the playground during recess within the subject premises when he was unexpectedly and violently pushed by another student in the presence of Defendants' CITY OF LOS ANGELES, a public entity; COUNTY OF LOS ANGELES, a public entity; LOS ANGELES UNIFIED SCHOOL DISTRICT, a public entity; LOS ANGELES COUNTY OFFICE OF EDUCATION, a public entity; and Does 1 to 50, inclusive, school staff and/or employees whom failed take appropriate action. This caused Plaintiff HENRY SANCHEZ to sustain injuries and damages." (Complaint, ¶ 14)[1]

It is

undisputed that Sanchez did not fall because he was pushed. It is undisputed that Sanchez told his mother and nurses that he was not pushed, and that he fell because he was surprised when another student yelled. (See Plaintiff's Separate Statement, Nos. 4-5.)

LAUSD has

met their burden of showing that Sanchez cannot prove that he was pushed. The burden shifts to Sanchez to show a triable issue of fact.

Sanchez

does not does not dispute that he fell because he was surprised by Anthony's scream, not because he was pushed. Instead, Sanchez advances an alternate theory of liability, that LAUSD failed to supervise Sanchez properly, causing the injury. However, "A defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers." (Government Employees Ins.

Co. v. Superior Court (2000) 79 Cal.App.4th 95, fn. 4, citing Mars v. Wedbush Morgan Securities, Inc. (1991) 231 Ca.App.3d 1608, 1613-1614.) Sanchez does not cite any section of the complaint in support of this argument. (See Opposition, pp. 6-7.)[2] In fact, the complaint contains no factual allegations supporting his new theory that he was injured because his teacher, Ms. Lopez, failed to properly supervise recess.

The only cause of injury Sanchez pleads is the other child pushing him. Sanchez has produced no evidence to support that fact. Therefore, he cannot prove causation and cannot prove his negligence claim.

Conclusion

LAUSD's Motion for Summary Judgment is GRANTED.

This action is dismissed.

[1]
Defendants City of Los Angeles and Los Angeles County Office of Education have been dismissed.

[2]
Sanchez may be referring to ¶ 19, which alleges that LAUSD is "vicariously liable for injuries to Plaintiff Henry Sanchez caused by the acts, omissions, and breach of the duty of care of its employees." This allegation contains no facts and cannot support a negligence claim.